

Sellers Terms and Conditions

Introduction

Kibuga Investment operates an e-commerce platform consisting of a website and mobile application (“marketplace”), together with supporting logistics and payment infrastructure, for the sale and purchase of consumer products in Uganda (“territory”).

These seller terms and conditions shall apply to all sellers on the marketplace, together with our general terms and conditions of the use of the marketplace.

If you register with our marketplace as a seller:

- a. you accept these seller terms and conditions, the general terms and conditions, and the Kibuga codes, policies and guidelines, and as may be amended by Kibuga from time to time.
- b. We will ask you to expressly agree to these seller terms and conditions.

1. Seller stores

- a. If you register with our marketplace as a seller you will be able to create a store on the marketplace, using the “Kibuga” portal.
- b. Seller stores that are submitted may be reviewed for approval, at Kibuga’s discretion before they are operational.
- c. You shall be solely responsible for your store, listings and products and you hereby agree that:
 - a. You shall obtain any licenses required for sale of your products on the marketplace.
 - b. To the extent required by applicable law, you shall register with relevant tax authorities and pay all relevant taxes in relation to your product sales.
- d. d. You shall conduct your business on the marketplace:

a. In compliance with the Kibuga Partner Code of Conduct, and other Kibuga codes, policies and guidelines as published on the marketplace from time to time.

b. In accordance with ethical business practices and industry best practices; and 1. Without prejudice to our other rights, we reserve the right to reject, unpublish and/or delete any seller store that breaches these seller terms and conditions, the general terms and conditions, or any Kibuga codes, policies and guidelines.

1. Product listings

- a. You shall be responsible for listing your products on the marketplace by uploading to the Seller Centre a completed product page which shall include prices, detailed information, specifications and images in respect of each product.
- b. You may not publish more than one listing in respect of each product.
- c. You agree to be solely responsible for all listings submitted to our marketplace and you agree that all listings must:
 - constitute bona fide listings relating to products that comply with the categories and rules set out.

- comply with the rules on content in the general terms and conditions and further particularized in the Content and Image Guidelines; and
- d. Include all such information, specifications and guidelines as may be required pursuant to all applicable laws and regulations, including in respect of consumer protection.
- e. Listings that are submitted may be individually reviewed and approved at Kibuga's discretion, before they are published on the marketplace, and you acknowledge and agree there may be a lead time between submission of the product page to the Seller Centre and the publishing of the Product page on the marketplace due to time required for Kibuga quality control operations.
- f. Without prejudice to our other rights, we reserve the right to reject, unpublish and/or delete any listings that breach these seller terms and conditions, the general terms and conditions or any Kibuga codes, policies or guidelines.
- g. You acknowledge and agree that:
- Notwithstanding that we may approve any listings, you shall be fully responsible for the same; and
 - We reserve the right to impose penalties for breach of this section 3, without prejudice to our other rights.
 - You must keep your listings up to date. You must deactivate any listings in respect of products that have ceased to be available.

1. The products

- a. The only products that may be the subject of a listing on our marketplace are products falling within the product categories specified on the marketplace.
- b. You must not advertise, buy, sell or supply through our marketplace any product that:
- Breaches any laws or regulations or infringes any person's intellectual property rights or other rights, or gives rise to a cause of action against any person, in each case in any jurisdiction and under any applicable law.
 - Consists of or contains material that would, if published on our marketplace by you, contravene the rules on content in the general terms and conditions; or
 - Is or relates to drugs, narcotics, steroids or controlled substances; pornography; obscene, indecent or sexually explicit materials; swords, firearms or other weapons; ammunition for any weapon; or items that are otherwise prohibited pursuant to the Prohibited and restricted Products Policy, as may be amended from time to time, or any applicable law.
- c. We operate a zero-tolerance to counterfeit products and any attempt to sell counterfeit products on the marketplace, or other breach of our Anti Counterfeit Policy may result in the penalties specified in the Seller Penalty Policy which include financial penalties, permanently prohibiting you from using the marketplace, and potentially in prosecution.
- d. Promptly, following receipt of a written request from us, you must supply us any information and documentation that we may reasonably request to verify the authenticity of products.

2. Pricing

- a. All prices of products shall be stated inclusive of VAT and any other tax applicable to the transaction and in the currency of the territory.
- b. You shall be solely responsible for setting the price of your products on the marketplace, which may be amended through the Seller Centre from time to time, including for the purpose of any seasonal or other discounts.
- c. The pricing of your products shall comply with all applicable laws, including competition laws.

3. Fulfilment, packaging and delivery

- a. Upon receipt of a confirmation of sale from Kibuga, you shall:
 - Process the order by packing and labeling the product(s) in accordance with the Packaging Guidelines; and
 - Deliver the products to our drop-off point in accordance with the timelines, opening hours and procedures specified in the Delivery Guidelines.
- b. We may inspect any or all products we receive, and we reserve the right to return to you any product that fails to meet the packaging requirements set out in the Packaging Guidelines or that fails to pass our quality control checks or any other product requirements set out at section 4.
- c. You shall retain title to and ownership of the products until such time as the products are paid for in full by the buyer to Kibuga and delivered to the buyer. Upon delivery to the buyer, ownership of the products shall vest in the buyer.
- d. We shall bear the risk of loss or damage to the products upon receipt and until delivery to the buyer. Our liability to you in respect of your products in our possession pursuant to this shall be limited to the cost price of the products and shall be subject to the further limitations and exclusions on liability provided in the general terms and conditions.
- e. Without prejudice to all our rights, we may charge you incur penalties in respect of breaches of the Packaging Guidelines or the Delivery Guidelines. The amount of the penalties that may be charged pursuant to this shall be stated in the Seller Penalty Policy.

4. Commission and fees

- a. We shall charge you a commission in respect of each sale made on the marketplace and fees in respect of all marketplace services.
- b. We reserve the right to charge commissions and/or fees if the sale is not completed, by way of consideration for the costs of our services rendered.
- c. We may vary commissions and/or fees from time to time, on prior notice to you, and by updating the commissions and fees page of Seller Centre. This will not affect any liability to pay commission that accrues before the new rates are posted or for services that have been previously paid.

5. VAT and other taxes

- a. All amounts stated on the marketplace are stated inclusive of VAT and any other taxes applicable to the transaction. The seller acknowledges that:

- Commissions shall be calculated as a percentage of the selling price (being the price set by the vendor at the time of the order) inclusive of VAT and any other taxes charged to the buyer.
- Commissions are inclusive of VAT and all other taxes thereon; and
- In the event of any upwards revision in the rate of VAT or any other applicable taxes, the amount of the commission shall be automatically adjusted to ensure that Kibuga's net revenues remain constant.

b. The seller shall be exclusively liable in respect of all taxes applicable to the transactions entered into on the marketplace with buyers, including VAT, and shall therefore be responsible for the reporting, filing and payment of the same.

c. Should a competent tax authority determine that Kibuga is liable for payment of any taxes (including stamp, excise or customs duties) in respect of the transactions, notably, you hereby indemnify and hold harmless Kibuga in respect of the same. We may make tax-related deductions to payments processed by us on your behalf and remit such deducted amounts to the relevant government or tax authority.

d. Promptly following receipt of a written request from us, you must supply to us any information and documentation that we may reasonably request in order to identify you or facilitate our compliance with our legal obligations relating to the taxation of payments made to us or processed by us. We may supply such information and/or documentation to relevant government and tax authorities.

Remittances

- a. We shall collect payments from buyers in respect of each product purchased from the marketplace, and we shall deduct from the same our commissions and, as may be applicable, any fees, charges, taxes, penalties, refunds and any other amounts that you owe to us in respect of any business whatsoever.
- b. We shall remit the proceeds of sale of the products, after all deductions, and remit the remaining funds to you.
- c. Evidence of payment to your nominated account shall constitute conclusive evidence of payment and receipt.
- d. You shall be entirely responsible for ensuring that the account details that you upload to the Seller Centre are accurate and up to date, and that the account is secure. We shall not be liable for any loss or damage to you that may result from fraud or error in respect of your account.
- e. We shall provide you with an account statement, via the Seller Center, which shall include details of all proceeds of sale of the products, deductions and remittances.
- f. operate more than one account. For the avoidance of any doubt, the account statement in the Seller Centre shall serve as such notice of set-off.
- g. In the event that we hold insufficient funds on your behalf for payment of any amounts that you owe us (your account is in debit):
- h. We may delay or suspend payment to you in the event of investigation of a potential fraud or other breach of this agreement.
- i. In the event that the vendor disputes any transaction or statement of account it must report its claim to Kibuga within three (3) weeks of the date of the relevant transaction, failing which such claim shall be deemed to be waived.

Breaches of seller terms and conditions

- a. If we reasonably determine that you have breached these seller terms and conditions, our general terms and conditions, or any Kibuga codes, policies or guidelines, we may: 1. send you one or more formal warnings.
- b. suspend, prohibit or block your access to our marketplace as provided in the general terms and conditions.
- c. apply penalties for breach as provided in our Seller Penalty Policy; and/or
- d. commence legal action against you, whether for breach of contract or otherwise. 2. We may vary the amount of the penalties for breach from time to time by updating the Seller Penalty Policy, but this will not affect any liability to pay penalties that accrue before the new amounts are posted.

Confidentiality and data privacy

All information and documents concerning the conduct of business pursuant to these general terms and conditions, including information relating to business methods, procedures, policies and sales information, is strictly confidential unless it is already in the public domain. You shall not use Kibuga's confidential information for any purpose other than to perform your obligations under this Agreement and you shall not disclose Kibuga's confidential information without our prior written consent.

Sellers may not send advertising or promotional communications to buyers on the marketplace without the prior written consent of Kibuga and shall be directly responsible to marketplace users for any misuse of their personal data.

If Kibuga is sued, fined, or otherwise incurs expenses because of the seller's handling of personal data obtained through the marketplace, the seller shall indemnify Kibuga in respect of the same.